

STATE OF NEW YORK

10621--B

IN ASSEMBLY

March 13, 2026

Introduced by M. of A. O'PHARROW, BUTTENSCHON -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to establishing a fifteen-foot safety buffer zone around a New York state, New York city and local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor engaged in the performance of their official duties

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The penal law is amended by adding a new section 240.80 to read as follows:

§ 240.80 Interference with a New York state, New York city and local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor; safety buffer zone.

1. A person is guilty of interference with a New York state, New York city and local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor when such person:

(a) knowingly approaches or remains within the fifteen-foot safety buffer zone surrounding a New York state, New York city or local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor engaged in the lawful performance of official duties;

(b) has been given a verbal warning by such first responder, a judge or prosecutor to remain outside of the safety buffer zone; and

(c) knowingly and willfully fails to comply with such warning and remains within or approaches the safety buffer zone with intent to impede, threaten, harass, or otherwise interfere with the performance of such New York state, New York city and local municipal emergency first responder's, judge's, or prosecutor's duties.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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2. For the purposes of this section:

(a) "First responder" or "New York state, New York city, or local municipal first responder" shall mean a police officer, peace officer, firefighter, emergency medical technician, paramedic, or other emergency medical services provider engaged in the lawful performance of official duties.

(b) "Safety buffer zone" shall mean an area within fifteen feet of a New York state, New York city or local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor engaged in the lawful performance of such duties.

3. Nothing in this section shall be construed to:

(a) prohibit or restrict the lawful recording, photographing, or observing of a New York state, New York city, or local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor, provided that such activity occurs outside the fifteen-foot safety buffer zone and does not otherwise interfere with official duties; or

(b) apply to a person seeking emergency assistance, providing aid, or otherwise complying with lawful instructions from a New York state, New York city or local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor.

Interference with a New York state, New York city, or local municipal emergency first responder, a judge of any court of law of this state, or a state, county or municipal prosecutor is a class B misdemeanor.

§ 2. This act shall take effect on the ninetieth day after it shall have become a law.